



Reprinted
January 27, 2026

SENATE BILL No. 285

DIGEST OF SB 285 (Updated January 26, 2026 6:55 pm - DI 149)

Citations Affected: IC 5-20; IC 10-11; IC 35-52; IC 36-1.

Synopsis: Housing matters. Requires the Indiana housing and community development authority (authority) to establish eligibility criteria for a potential recipient to be included in the authority's application for funding under the federal continuum of care program (program). Requires a recipient of program funding to submit an annual report to the authority. Prohibits an individual from camping, sleeping, or using for long term shelter land owned by the state or a political subdivision, unless the land has been authorized for that use by law. Provides, if certain elements are met, that a person who knowingly or intentionally uses land owned by the state or a political subdivision for unauthorized camping, sleeping, or long term shelter commits a Class C misdemeanor. Prohibits a political subdivision from adopting or enforcing any policy that prohibits or discourages the enforcement of any order or ordinance prohibiting public camping, sleeping, or other obstruction of a sidewalk. Authorizes a resident of the political subdivision, an owner of a business located in the political subdivision, or the attorney general to bring a civil action to enjoin a political subdivision that adopts or enforces such a policy. Requires: (1) each local law enforcement agency to provide to the state police department the number of arrests made for violations of the prohibition of street camping; and (2) the state police department to provide this information to the authority. Specifies that the bill does not prohibit a policy, program, or order of a political subdivision that encourages a diversion program or encourages or requires providing housing or shelter in lieu of a citation or arrest.

Effective: July 1, 2026.

Carrasco, Koch

January 12, 2026, read first time and referred to Committee on Judiciary.
January 15, 2026, amended, reported favorably — Do Pass.
January 26, 2026, read second time, amended, ordered engrossed.

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Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 285

A BILL FOR AN ACT to amend the Indiana Code concerning local government.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 5-20-1-28 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 28. (a) The authority shall establish eligibility**
4 **criteria, in accordance with federal law, for a potential recipient to**
5 **be included in the authority's application for funding under the**
6 **federal Continuum of Care program (24 CFR Part 578).**
7 **(b) On an annual basis and in a manner prescribed by the**
8 **authority, each recipient of funds distributed by the authority**
9 **under the federal Continuum of Care program (24 CFR Part 578)**
10 **shall submit a report to the authority summarizing:**
11 **(1) information concerning the recipient's efforts to address**
12 **unsheltered homelessness; and**
13 **(2) whether the recipient reduced unsheltered homelessness.**
14 SECTION 2. IC 10-11-2-36 IS ADDED TO THE INDIANA CODE
15 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
16 1, 2026]: **Sec. 36. Not later than July 1 of each year, the state police**
17 **department shall provide to the Indiana housing and community**

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development authority the information received under IC 36-1-31.5-4.

SECTION 3. IC 35-52-36-0.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 0.5. IC 36-1-31.5-1 defines a crime concerning the unauthorized use of land owned by the state or a political subdivision to camp, sleep, or use for long term shelter.**

SECTION 4. IC 36-1-31.5 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 31.5. Prohibition of Street Camping

Sec. 1. (a) A person may not camp, sleep, or use for long term shelter land owned by the state or a political subdivision, unless the land has been authorized for that use by law.

(b) If:

(1) a person violates subsection (a); and

(2) the person has not previously violated subsection (a);
the law enforcement officer who discovers the violation shall first give the person a warning and provide the person with information regarding locations authorized by law to provide services or shelter.

(c) A person who knowingly or intentionally violates subsection (a) commits street camping, a Class C misdemeanor, if:

(1) the person has received a warning under subsection (b);

(2) at least forty-eight (48) hours have elapsed since the warning was issued; and

(3) the person is camping or sleeping on, or using for long term shelter, land owned by the state or a political subdivision that is located within a three hundred (300) foot radius of the location where the warning under subsection (b) was issued.

(d) A person charged with an offense under subsection (c) is eligible to participate in a diversion program, including:

(1) a prosecutorial diversion program under IC 33-39-1-8; or

(2) a forensic diversion program under IC 11-12-3.7.

(e) If a law enforcement officer has reasonable grounds to believe that a person is either dangerous or gravely disabled, and is in immediate need of hospitalization and treatment, an officer may initiate emergency detention procedures under IC 12-26-5.

Sec. 2. The court may refer a person charged with an offense under section 1 of this chapter for evaluation and treatment under IC 33-23-18-6.



1 **Sec. 3. (a) A political subdivision shall not adopt or enforce any**
 2 **policy under which the political subdivision prohibits or**
 3 **discourages the enforcement of any order or ordinance prohibiting**
 4 **public camping, sleeping, or other obstruction of a sidewalk.**

5 **(b) In compliance with subsection (a), a political subdivision**
 6 **shall not prohibit or discourage a law enforcement officer who is**
 7 **employed by or otherwise under the direction or control of the**
 8 **political subdivision from enforcing any order or ordinance**
 9 **prohibiting public camping, sleeping, or other obstruction of a**
 10 **sidewalk.**

11 **(c) A resident of the political subdivision, an owner of a business**
 12 **located in the political subdivision, or the attorney general may**
 13 **bring a civil action in any court with jurisdiction against any**
 14 **political subdivision to enjoin the political subdivision from**
 15 **violating this section.**

16 **(d) The attorney general may recover reasonable expenses**
 17 **incurred in any civil action brought under this section, including**
 18 **court costs, reasonable attorney's fees, investigative costs, witness**
 19 **fees, and deposition costs.**

20 **Sec. 4. Not later than March 1 of each year, each local law**
 21 **enforcement agency shall provide to the state police department**
 22 **the number of citations issued and arrests made for violations of**
 23 **section 1 of this chapter by the law enforcement agency during the**
 24 **preceding calendar year.**

25 **Sec. 5. (a) Subject to subsection (b), this chapter does not**
 26 **prohibit a policy, program, or order of a political subdivision that:**

27 **(1) encourages a diversion program; or**

28 **(2) encourages or requires providing housing or shelter**
 29 **services in lieu of a citation or arrest.**

30 **(b) A policy, program, or order described in subsection (a) may**
 31 **not allow a person to remain in the area described in section**
 32 **(1)(c)(3) of this chapter beyond the forty-eight (48) hour period of**
 33 **time after receiving a warning under section (1)(b) of this chapter.**



COMMITTEE REPORT

Mr. President: The Senate Committee on Judiciary, to which was referred Senate Bill No. 285, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 2, line 26, delete "twenty-four (24)" and insert "**forty-eight (48)**".

Page 2, line 40, after "officer" delete "or".

Page 2, line 41, delete "prosecuting attorney".

and when so amended that said bill do pass.

(Reference is to SB 285 as introduced.)

CARRASCO, Chairperson

Committee Vote: Yeas 8, Nays 2.

 SENATE MOTION

Mr. President: I move that Senate Bill 285 be amended to read as follows:

Page 2, line 20, delete "offer to transport the person to a" and insert "**provide the person with information regarding locations authorized by law to provide services or shelter.**".

Page 2, delete lines 21 through 22.

Page 2, delete lines 23 through 28, begin a new paragraph and insert:

"(c) A person who knowingly or intentionally violates subsection (a) commits street camping, a Class C misdemeanor, if:

- (1) the person has received a warning under subsection (b);**
- (2) at least forty-eight (48) hours have elapsed since the warning was issued; and**
- (3) the person is camping or sleeping on, or using for long term shelter, land owned by the state or a political subdivision that is located within a three hundred (300) foot radius of the location where the warning under subsection (b) was issued."**

Page 2, line 30, delete "including a forensic" and insert "**including:**

- (1) a prosecutorial diversion program under IC 33-39-1-8; or**
- (2) a forensic diversion program under IC 11-12-3.7."**

Page 2, delete line 31, begin a new paragraph and insert:

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"(e) If a law enforcement officer has reasonable grounds to believe that a person is either dangerous or gravely disabled, and is in immediate need of hospitalization and treatment, an officer may initiate emergency detention procedures under IC 12-26-5."

Page 3, line 14, after "number of" insert "citations issued and".

Page 3, delete lines 17 through 19, begin a new paragraph and insert:

"Sec. 5. (a) Subject to subsection (b), this chapter does not prohibit a policy, program, or order of a political subdivision that:

(1) encourages a diversion program; or

(2) encourages or requires providing housing or shelter services in lieu of a citation or arrest.

(b) A policy, program, or order described in subsection (a) may not allow a person to remain in the area described in section (1)(c)(3) of this chapter beyond the forty-eight (48) hour period of time after receiving a warning under section (1)(b) of this chapter."

(Reference is to SB 285 as printed January 16, 2026.)

CARRASCO

